

HOUSE No. 1670

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Donaghue

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the repeal or reform of certain unenforceable or unconstitutional archaic laws on religion, piety, and morality.

PETITION OF:

NAME:

Kate Donaghue

DISTRICT/ADDRESS:

19th Worcester

DATE ADDED:

1/15/2025

HOUSE No. 1670

By Representative Donaghue of Westborough, a petition (accompanied by bill, House, No. 1670) of Kate Donaghue relative to the repeal or reform of certain archaic laws on religion, piety, and morality. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1469 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the repeal or reform of certain unenforceable or unconstitutional archaic laws on religion, piety, and morality.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 30 of Chapter 71 of the General Laws is hereby repealed.

2 SECTION 2. Section 31 of Chapter 71 of the General Laws is hereby amended by
3 striking the first sentence.

4 SECTION 3. Section 15 of Chapter 233 is hereby amended by striking the wording in its
5 entirety and inserting in place thereof the following:- In all cases in which an oath or affirmation
6 of truthfulness is required by law, the oath or affirmation shall make no religious reference and
7 the person administering the oath or affirmation shall require only that the person taking the
8 oath or affirmation hold up his or her hand and affirm that the testimony or declaration is truthful
9 and, when appropriate, made under the penalties of perjury.

10 SECTION 4. Sections 16 through 19 of Chapter 233 of the General Laws are hereby
11 repealed.

12 SECTION 5. Section 26 of Chapter 272 of the General Laws is hereby repealed.

13 SECTION 6. Section 29 of Chapter 272 of the General Laws is hereby repealed.

14 SECTION 7. Section 34 of Chapter 272 of the General Laws is hereby repealed.

15 SECTION 8. Section 35 of Chapter 272 of the General Laws is hereby repealed.

16 SECTION 9. Section 36 of Chapter 272 of the General Laws is hereby repealed.